

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Leslie Martinez	Team: Squad #8	CCRB Case #: 202101962	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/08/2021 11:30 PM	Location of Incident: Inside of § 87(2)(b)	Precinct: 79	18 Mo. SOL 7/8/2022	EO SOL 7/8/2022	
Date/Time CV Reported Sun, 03/28/2021 12:05 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 03/28/2021 12:05 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Frederick Manney	04797	949938	090 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Mohamed Elhanafi	15082	955897	GVSD Z1
2. POM Mccartney Forbes	11038	966577	079 PCT
3. POM Lucas Mcguirewright	01032	966206	079 PCT
4. POM Jared Lambert	10566	960781	079 PCT
5. POM Ryan Dillon	11472	966034	079 PCT
6. POM Alvin Guthrie	16947	955965	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Frederick Manney	Abuse: Sergeant Frederick Manney entered § 87(2)(b) Room 404, in Brooklyn	§ 87(2)(b)
B.SGT Frederick Manney	Abuse: Sergeant Frederick Manney searched § 87(2)(b) Room 404, in Brooklyn.	§ 87(2)(b)

Case Summary

On March 28, 2021, § 87(2)(b) filed this complaint via the CCRB online website.

On January 8, 2021, at approximately 11:30 p.m., § 87(2)(b) was a guest at the § 87(2)(b) on § 87(2)(b) in Brooklyn when she heard a knock on the door. Sergeant Frederick Manney from the 90th Precinct and hotel management announced themselves, and as § 87(2)(b) attempted to remove the chain from the door, Sgt. Manney allegedly pushed the door open. Sgt. Manney and officers from the 79th Precinct, 90th Precinct, and Gun Violence Suppression Division Zone 1 entered and searched the room. **(Allegation A: Abuse of Authority; § 87(2)(g) Allegation B: Abuse of Authority; § 87(2)(g))** During the search, officers found marijuana and issued § 87(2)(b) a summons before leaving.

The investigation obtained Body-worn camera (BWC) footage from Sgt. Frederick Manney and PO Mccartney Forbes from the 79th Precinct. [BR01, BR02]

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Frederick Manney entered § 87(2)(b) Room 404, in Brooklyn.

Allegation (B) Abuse of Authority: Sergeant Frederick Manney searched § 87(2)(b) Room 404, in Brooklyn.

It is undisputed that Sgt. Manney entered and searched § 87(2)(b)'s hotel room. § 87(2)(g)

§ 87(2)(b) testified to the CCRB on April 12, 2021, that on January 8, 2021, at approximately 11:00 p.m., she was staying in room 404 at the § 87(2)(b) at § 87(2)(b) in Brooklyn. When she got out of the shower, she heard a knock on the door. § 87(2)(b) asked who was there, and Sgt. Manney said, "NYPD and hotel management." As § 87(2)(b) attempted to remove the chain lock from the door, an officer pushed the door open. § 87(2)(b) did not provide verbal or physical consent for the officers to enter the room.

Sgt. Manney and the additional officers entered and walked around the room. § 87(2)(b) did not provide physical or verbal consent for officers to search the room. Instead, the officers opened the closet doors, entered the bathroom, touched the top of the bed, opened the hotel safe, and pointed their flashlights around the balcony. § 87(2)(b) initially stated in her interview that she had an empty packet of marijuana sitting on the dresser but then later said officers retrieved it from inside her purse located on the floor on the left-hand side of the bed. She denied smoking inside the room. Sgt. Manney then issued § 87(2)(b) a summons, and when asked by § 87(2)(b) stated that the officers were there because hotel management complained of smelling marijuana. The officers then left and apologized. [BR03]

The manager of the § 87(2)(b) § 87(2)(b), provided a statement to the CCRB on April 20, 2021. He testified that on January 8, 2021, between 11:00 p.m., in the vicinity of the § 87(2)(b) at 56 Franklin in Brooklyn, police officers stopped a gray vehicle with guests who had come from the hotel. Officers went inside the § 87(2)(b) and told § 87(2)(b) they pulled over two men who said they were guests at the hotel. § 87(2)(b) was unsure why officers requested to go to the guest room but believed it was because the § 87(2)(b) previously had issues with guests partying and smoking marijuana. As a result, they would occasionally contact the NYPD for assistance. NYPD officers would periodically enter the hotel and walk around to check and see if there were any issues inside the hotel. Therefore, § 87(2)(b) believed officers were conducting a check-up since he nor the hotel staff called 911.

Once officers concluded their check, they came back downstairs and told § 87(2)(b) they smelled marijuana outside a room on the fourth floor. § 87(2)(b) accompanied the officers to the fourth floor from the elevator and smelled the odor of marijuana. § 87(2)(b) was unsure how far the elevator was from the room but determined the marijuana came from room 404 because the scent was strongest there. § 87(2)(b) opened the door all the way, and from the hall, there was marijuana sitting on the kitchenette table. Officers proceeded to go inside the room, and § 87(2)(b) stepped outside and stood near the door as officers entered. § 87(2)(b) did not prevent the officers from going into her room or verbally deny them entry. [BR04]

Sgt. Manney testified during his September 29, 2021, CCRB interview that on January 8, 2021, in the vicinity of § 87(2)(b) in Brooklyn, he conducted a car stop for a vehicle double-parked near the hotel. As a result, the civilian was brought to the stationhouse and issued a double-parking summons. Sgt. Manney believed the civilian told him he was hanging out upstairs in the § 87(2)(b) which may have led him to § 87(2)(b)'s hotel room, but he did not remember if the civilian mentioned § 87(2)(b) by name or her room number specifically.

After the car stop, Sgt. Manney returned to the § 87(2)(b) because he responded to the location for multiple issues when he was a public safety sergeant. For example, he received a call about someone who shot a gun through a wall one time at the hotel.

Sgt. Manney did not remember how much time elapsed between the car stop and returning to the hotel room but based on his memo book entries, Sgt. Manney determined it was between 9:59 p.m. and 10:43 p.m. When he arrived, he asked the hotel manager § 87(2)(b) in substance, if everything was all right. Sgt. Manney told § 87(2)(b) about the car stop and informed him that a group of kids was hanging out upstairs. Sgt. Manney asked if § 87(2)(b) wanted him to check it out, and he brought him upstairs to room 404. Sgt. Manney did not recall how many officers were present, but his partner PO Mohamed Elafani from the Gun Violence Suppression Division Zone 1, was there. They got off the elevator, and when they stood outside the room, there was a strong odor of marijuana emanating from the door. Sgt. Manney believed he detected the odor of both burnt and unburnt marijuana, given his training and experience.

Sgt. Manney knocked on the door, and § 87(2)(b) opened the door wide enough for him to observe marijuana on the counter, approximately six-eight feet from the door. Sgt. Manney described the bag of marijuana as a substantially large bag. He did not remember if § 87(2)(b) permitted him to enter the room but stated the hotel manager did. Sgt. Manney did not remember if § 87(2)(b) asked him to leave or denied the officers entry. Based on the smell of burnt and unburnt marijuana and the marijuana he observed, Sgt. Manney believed there could have been additional illegal substances, and therefore, conducted a search with PO Elhanafi, PO McCartney Forbes, and PO Jared Lambert from the 79th Precinct. Besides the marijuana, they were looking for other illegal contraband. They searched around the bedroom and bathroom, looking for any contraband. Sgt. Manney did not acknowledge searching § 87(2)(b)'s purse. After the search was completed, he issued her a criminal summons for § 87(2)(b) and left. [BR05]

Sgt. Manney's BWC captures the entirety of the incident from when he knocks on § 87(2)(b)'s room door till when he and the officers exit. Sgt. Manney knocks on the door, and at 1:31, § 87(2)(b) opens the door wide open. At 1:32, there appear to be items on the kitchenette. After § 87(2)(b) opens the door, she walks away from the door and further into the room; Sgt. Manney holds the door open. At 1:35, Sgt. Manney attempts to speak, and § 87(2)(b) says, "You can come in," and Sgt. Manney walks in. At 1:49, PO Manney asks § 87(2)(b) with his flashlight pointed towards the balcony, "There's nobody out there?" and § 87(2)(b) says, "no, you can go, check." From 01:57

- 2:07, Sgt. Manney searches the balcony with his flashlight and then tells § 87(2)(b) marijuana is not allowed in the hotel room. He asks her to wait outside, and she exits the room. From 2:14- 4:44, additional officers enter and search the bathroom, bedroom, and closet. From 04:25 – 04:32, Sgt. Manney asks § 87(2)(b) her age, and she says, "I'm § 87(2)(b) and my ID is in my bag." Sgt. Manney tells § 87(2)(b) she is receiving a summons because of marijuana, and at 7:58, the officer's exit. [BR01]

PO McCartney Forbes from the 79th Precinct BWC captures the entirety of the incident from when officers approach § 87(2)(b)'s room door till when officers exit. At 4:23, Sgt. Manney asks § 87(2)(b) her age, and she says, "I'm § 87(2)(b) and my ID is in my bag." PO Forbes walks from the entrance door towards the bed. At 4:42, PO Forbes picks up § 87(2)(b)'s tote bag from the floor near the right side of the bed. He points his flashlight inside the bag and removes an article of clothing and then a small pouch bag. Next, he unzips the pouch and removes what appears to be an identification card. After retrieving the identification, he places the bag back on the ground. From 5:02 – 7:28, PO Forbes is filling out a summons. [BR02]

People v. Brown 233 A.D.2d 211 (1996), the courts established that warrantless entries into private residences are presumed unconstitutional. One of the exceptions to this rule is consent. The courts established that consent for officers to enter a home may be established by conduct and words and that once consent has been given, the scope of the ensuing action cannot exceed the consent. [BR06]

People v. Gonzalez, 39 N.Y.2d 122 (1976), consent is voluntary when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice. Voluntariness is incompatible with official coercion, actual or implicit, overt or subtle. People v. Gonzalez, 39 N.Y.2d 122 (1976). [BR07]

Ornelas v United States, 517 U.S. 690, established "reasonable suspicion simply means "a particularized and objective basis" for suspecting the person stopped of criminal activity, and probable cause to search as existing where the known facts and circumstances are sufficient to warrant a man of reasonable prudence in the belief that contraband or evidence of a crime will be found." [BR08]

§ 87(2)(g)



- This is the first CCRB complaint to which § 87(2)(b) has been a party. [BR09]
- Sergeant Frederick Manney has been a member of service for 10 years and has been a subject in 15 CCRB complaints and 49 allegations, of which two were substantiated:
 - Case 201903851 involved substantiated allegations of Failure to provide an RTKA card and two searches of premises against Sgt. Manney. The Board recommended command discipline A and two Command Discipline B's and the NYPD disposition is pending.
 - Case 201907401 involved substantiated allegations of search of premises and entry of premises against Sgt. Manney. The Board recommended charges, and the NYPD disposition remains pending.

- This complaint was not suitable for mediation.
- As of October 18, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this complaint [BR10]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Investigator: Leslie Martinez Inv. Martinez 10/26/2021
 Signature Print Title & Name Date

Squad Leader: Ethan De Angelo IM Ethan De Angelo 11/1/2021
 Signature Print Title & Name Date

Reviewer: _____
 Signature Print Title & Name Date